

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4 – Economic Stability (ES)
	Part No./Name	F – Case Maintenance
	Section No./Name	F-300-FITAP-SNAP Intentional Program Violations (IPV)
	Document No./Name	F-340-FITAP Referrals For IPV
	Effective Date	January 1, 2023

I. STATEMENT OF POLICY

THE FRAUD AND RECOVERY UNIT WILL REVIEW ALL COMPLAINTS, FROM THE PUBLIC AND DCFS STAFF, TO DETERMINE IF THERE ARE VALID REASONS TO SUSPECT AN INTENTIONAL PROGRAM VIOLATION ON THE PART OF THE SUSPECTED VIOLATOR.

F-341-FITAP - PO PARISH OFFICE RESPONSIBILITY

IPV DISQUALIFICATION ALERTS ARE SENT TO EACH ECONOMIC STABILITY OFFICE VIA THE GENERIC EMAIL ADDRESS ADVISING THAT AN IPV DETERMINATION HAS BEEN MADE.

F-342-FITAP - PO FRAUD AND RECOVERY UNIT RESPONSIBILITY

WHEN THERE ARE VALID REASONS TO SUSPECT IPV, THE FRAUD AND RECOVERY UNIT WILL PURSUE AN ADMINISTRATIVE IPV DETERMINATION OR CRIMINAL IPV DETERMINATION.

F-342-1-FITAP – PO Imposition of the Disqualification

THERE IS A DEFINED PERIOD OF TIME TO NOTIFY A DISQUALIFIED MEMBER.

F-343-FITAP - PO DCFS BUREAU OF APPEALS' RESPONSIBILITY

REFERRALS ARE MADE TO THE DCFS BUREAU OF APPEALS WHEN WARRANTED.

II. PROCEDURES

F-341-FITAP - PR PARISH OFFICE RESPONSIBILITY

THE LOCAL OFFICE:

- INFORMS THE HOUSEHOLD OF THE DISQUALIFICATION PENALTIES FOR COMMITTING IPV EACH TIME THE HOUSEHOLD APPLIES FOR BENEFITS,
- REPORTS OVERISSUANCES ON FORM [OFS 20CD](#) WITH A COPY OF SUPPORTING DOCUMENTS CONTAINING A RECOMMENDATION TO THE FRAUD AND RECOVERY UNIT THAT IPV IS SUSPECTED, AND
- REFERS CASES OF ALLEGED IPV TO THE FRAUD AND RECOVERY UNIT FOR INVESTIGATION AS INSTRUCTED BY [OFS 40](#) INSTRUCTIONS.

ONCE THE HEARING PROCESS BEGINS FOR A COMBINED FAIR HEARING AND AN ADMINISTRATIVE DISQUALIFICATION HEARING, THE LOCAL OFFICE:

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- REPORTS SUBSEQUENT CHANGES IN CLIENT'S CASE STATUS, BENEFIT AMOUNT, ADDRESS, OR OTHER CIRCUMSTANCE TO DCFS BUREAU OF APPEALS, AND
- REPORTS THESE SUBSEQUENT CHANGES DURING THE HEARING TO THE ADMINISTRATIVE LAW JUDGE.

IF IPV HAS BEEN ESTABLISHED, FRAUD AND RECOVERY NOTIFIES THE LOCAL OFFICE THAT A PERSON HAS COMMITTED AN IPV WITH AN ALERT SENT TO THE GENERIC EMAIL ADDRESS, AND ENTERS IPV DECISIONS ON THE * LITE SANCTION SCREEN.

NOTE: THE LOCAL OFFICE MUST CHECK THE GENERIC EMAIL INBOX REGULARLY FOR NEW IPV SANCTION EMAILS FROM THE FRAUD AND RECOVERY UNIT.

- IF THE CASE IS ACTIVE, THE WORKER MUST AUTHORIZE THE CASE TO IMPOSE THE DISQUALIFICATION. LITE WILL GENERATE ADEQUATE NOTICE TO THE HOUSEHOLD PROVIDING BENEFIT AMOUNT AFTER THE APPROPRIATE PERSON IS DISQUALIFIED.
- IF THE CASE IS INACTIVE AND THE SANCTION PERIOD HAS NOT ENDED, UPON AUTHORIZATION AT CERTIFICATION, GENERATE A NOTICE TO THE HOUSEHOLD ADVISING OF ELIGIBILITY AND BENEFIT LEVEL WITH THE DISQUALIFIED MEMBER'S NEEDS OMITTED.

A COPY OF THE EMAIL RECEIVED FROM THE FRAUD AND RECOVERY UNIT MUST BE FILED IN ONBASE, AND A CASE NOTE MADE STATING WHEN THE CASE WAS AUTHORIZED. **

ONCE A DISQUALIFICATION PENALTY HAS BEEN IMPOSED, THE PERIOD OF DISQUALIFICATION CONTINUES UNINTERRUPTED UNTIL COMPLETED REGARDLESS OF THE ELIGIBILITY OF THE DISQUALIFIED MEMBER'S HOUSEHOLD FOR THE REMAINDER OF THE DISQUALIFICATION PERIOD.

F-342-FITAP - PR FRAUD AND RECOVERY UNIT RESPONSIBILITY

WHEN A CASE IS REFERRED TO FRAUD AND RECOVERY, FRAUD AND RECOVERY:

- REFERS THE CASE FOR PROSECUTION, OR
- REFERS THE CASE TO DCFS BUREAU OF APPEALS FOR AN ADMINISTRATIVE DISQUALIFICATION HEARING IF THE CLIENT DOES NOT SIGN THE WAIVER OF RIGHT TO AN ADMINISTRATIVE DISQUALIFICATION HEARING, AND:
 - THE FACTS OF THE INDIVIDUAL CASE DO NOT WARRANT CIVIL OR CRIMINAL PROSECUTION THROUGH THE APPROPRIATE COURT SYSTEMS; OR

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- THE CASE WAS PREVIOUSLY REFERRED FOR PROSECUTION, AND WAS DECLINED BY THE APPROPRIATE LEGAL AUTHORITY; OR
- THE CASE WAS PREVIOUSLY REFERRED FOR PROSECUTION AND NO ACTION WAS TAKEN WITHIN A REASONABLE PERIOD AND THE REFERRAL WAS FORMALLY WITHDRAWN BY FRAUD AND RECOVERY, OR
- PURSUES COLLECTION WHEN IPV CANNOT BE ESTABLISHED, OR
- INITIATES COLLECTION ON CLAIMS PENDING AN ADMINISTRATIVE DISQUALIFICATION HEARING.

IF IPV HAS BEEN ESTABLISHED, FRAUD AND RECOVERY MUST:

- INITIATE COLLECTION ACTION FOR IPV CLAIMS,
- ISSUE FORM FR 15A AND HEARING DECISION (IF APPLICABLE) TO THE PERSON TO BE DISQUALIFIED. THE HEARING DECISION MUST BE PROVIDED TO THE HOUSEHOLD MEMBER WITHIN 90 DAYS OF THE DATE THE HOUSEHOLD MEMBER WAS NOTIFIED IN WRITING THAT A HEARING HAD BEEN SCHEDULED. SEND THE PARISH OFFICE A COPY OF THE FORM FR 15A AND HEARING DECISION (IF APPLICABLE).
- ENTER IPV DECISIONS ON THE * LITE ** SANCTION SCREEN. ENTER THE *** VIOLATION OCCURRENCE, SANCTION REASON, DECISION DATE AND BEGIN DATE ON THE MEMBER SANCTION SCREEN. THE SANCTION END DATE IS AUTOMATICALLY POPULATED BASED ON THE VIOLATION OCCURRENCE TIME PERIOD.
 - IF THE CASE IS ACTIVE, SEND AN IPV DISQUALIFICATION ALERT FOR WORKER ACTIVITIES. THE WORKER WILL * AUTHORIZE THE CASE TO IMPOSE THE DISQUALIFICATION AND LITE WILL GENERATE ADEQUATE NOTICE TO THE HOUSEHOLD PROVIDING BENEFIT AMOUNT AFTER THE APPROPRIATE PERSON IS DISQUALIFIED.
 - IF THE CASE IS INACTIVE AND THE SANCTION PERIOD HAS NOT ENDED, UPON AUTHORIZATION AT CERTIFICATION, GENERATE A NOTICE TO THE HOUSEHOLD ADVISING OF ELIGIBILITY AND BENEFIT LEVEL WITH THE DISQUALIFIED MEMBER'S NEEDS OMITTED.

NOTE: LITE TRACKS THE DISQUALIFICATION PERIOD AND AUTHORIZES ** THE CASE TO ADD THE MEMBER BACK TO THE CASE AT THE END OF THE SANCTION PERIOD. A SYSTEM NOTICE WILL BE SENT WHEN THE MEMBER IS ADDED BACK TO THE CASE.

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F-342-1-FITAP - PR Imposition of the Disqualification

THE DISQUALIFICATION MUST BE IMPOSED AS FOLLOWS:

- WITHIN 45 DAYS OF THE DATE THE PERSON WAS FOUND GUILTY OR SENTENCED BY THE COURT IF NO OTHER DATE WAS SPECIFIED BY THE COURT; OR
- WITHIN 45 DAYS OF THE DATE THE PERSON SIGNED THE COURT DISQUALIFICATION CONSENT AGREEMENT; OR
- Effective no later than the first day of the second month following the date of the notice (Form FR 15A).

THE PERIOD OF DISQUALIFICATION CONTINUES UNINTERRUPTED UNTIL COMPLETED REGARDLESS OF THE ELIGIBILITY OF THE DISQUALIFIED MEMBER'S HOUSEHOLD FOR THE REMAINDER OF THE DISQUALIFICATION PERIOD.

F-343-FITAP - PR DCFS BUREAU OF APPEALS' RESPONSIBILITY

WHEN A CASE IS REFERRED BY FRAUD AND RECOVERY, THE DCFS BUREAU OF APPEALS MUST:

- REVIEW AND PREPARE THE DEPARTMENT'S CASE.

A FAIR HEARING AND AN ADMINISTRATIVE DISQUALIFICATION HEARING MAY BE COMBINED INTO A SINGLE HEARING IF THE FACTUAL ISSUE ARISE OUT OF THE SAME OR RELATED CIRCUMSTANCES AND THE HOUSEHOLD RECEIVES PRIOR NOTICE THAT THEY WILL BE COMBINED.

IF THE HEARINGS ARE COMBINED FOR THE PURPOSE OF SETTling THE AMOUNT OF THE CLAIM AT THE SAME TIME AS DETERMINING WHETHER AN IPV OCCURRED, THE HOUSEHOLD MAY NOT SUBSEQUENTLY APPEAL THE AMOUNT OF THE CLAIM.

- SEND NOTICE TO THE HOUSEHOLD THAT THE APPEAL REQUEST HAS BEEN DENIED WITH A COPY OF THE SUMMARY OF EVIDENCE AND COPY OF ALL DOCUMENTS REFERENCED.
- SEND ADVANCE NOTICE OF THE HEARING TO THE HOUSEHOLD BY EITHER FIRST-CLASS MAIL OR CERTIFIED MAIL-RETURN RECEIPT REQUESTED AT LEAST 30 DAYS PRIOR TO THE DATE OF THE HEARING WITH A COPY OF THE SUMMARY OF EVIDENCE AND A COPY OF ALL DOCUMENTS REFERENCED.

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- SEND THE DOCUMENT PACKET TO THE DIVISION OF ADMINISTRATIVE LAW, WHO WILL CONDUCT THE HEARING, ARRIVE AT A DECISION, AND NOTIFY THE HOUSEHOLD AND THE DCFS BUREAU OF APPEALS.

Note: Division of Administrative Law will recommend a decision for FITAP/KCSP cases and DCFS will issue the final decision.

- RESCHEDULE THE HEARING WITH THE DIVISION OF ADMINISTRATIVE LAW ON BEHALF OF THE CLIENT IF REQUESTED.
- SUBMIT A NEW APPEAL REQUEST TO THE DIVISION OF ADMINISTRATIVE LAW ON BEHALF OF THE CLIENT IF REQUESTED.
- WITHIN 80 DAYS OF THE DATE THE HOUSEHOLD MEMBER IS NOTIFIED IN WRITING THAT A HEARING HAS BEEN SCHEDULED, THE DCFS BUREAU OF APPEALS MUST NOTIFY FRAUD AND RECOVERY OF THE DECISION.

NOTE: A PENDING ADMINISTRATIVE DISQUALIFICATION HEARING FOR IPV DOES NOT AFFECT THE PERSON'S OR THE HOUSEHOLD'S RIGHT TO BE CERTIFIED AND PARTICIPATE IN THE PROGRAM.

III. FORMS AND INSTRUCTIONS

OFS 20CD [Form](#) / [Instructions](#) Report of Claim Determination

OFS 40 [Form](#) / [Instructions](#) Fraud Investigation Referral

FR-015A Form / [Instructions](#) Intentional Program Violation Disqualification Notice

IV. REFERENCES

TANF-ACF-PI-2006-03 (Collecting and Repaying Overpayments Made to Families under the Aid to Families with Dependent Children (AFDC) Program and the Temporary Assistance for Needy Families (TANF) Program) (Replaces TANF-ACF-PI-2000-2)

[E-510 Disqualification Process Responsibilities/ Procedures](#)